

Rajendra Singh Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 October 2016 · Writ-C No. 49492 of 2016 · Writ-C No. 49492 of 2016
· **Writ disposed; corrected 6.5 bill payable in stipulated installments.**

HEADNOTE

Where the consumer's electricity bill had already been corrected under clause 6.5 of the Electricity Supply Code, 2005, the High Court, without reopening the quantum, disposed of the writ by permitting payment of Rs. 4,48,311 through a deposit of Rs. 2 lakh within four weeks and the balance in three equal installments, with liberty to the licensee to recover forthwith on default.

FACTUAL SUMMARY

Rajendra Singh Yadav's electricity bill was corrected under clause 6.5 of the Electricity Supply Code, 2005 by an order dated 21 July 2016, issued pursuant to an earlier direction of the Court, requiring him to pay Rs. 4,48,311. He filed this writ petition against that order. After the matter was heard, counsel for the petitioner confined the prayer to permission to pay the demand in installments, stating that the petitioner was ready and willing to pay the amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

installment payment after clause 6.5 bill correction

HOLDING

Once the electricity bill had been corrected under clause 6.5, the Court did not reopen that correction. On the consumer's willingness to pay Rs. 4,48,311, it directed a deposit of Rs. 2 lakh within four weeks and the balance in three equal installments (30 November 2016, 31 January 2017 and 31 March 2017), default entitling the licensee to recover the amount forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE CLAUSE 6.5 BILL-CORRECTION ORDER DATED 21.7.2016

Counsel confined the prayer to installment facility; the Court did not examine the correction on merits. ¶ 1